

May 29, 2019



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14204
(SIXTH REVISION)

EXPIRATION DATE: 2023-04-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Lanxess Solutions US Inc.
Shelton, CT
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of bromine in a 10 gallon UN 1N1 Monel drum that does not have a cap seal and is not overpacked in a UN 1A2 or UN 1H2 drum. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.226(b) in that the drums which do not have a cap seal and which are not shipped in an outer UN 1A2 or UN 1H2 drum are not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Lanxess Solutions US Inc. formerly Chemtura Corporation dated April 24, 2019, submitted in accordance with § 107.109.

Tracking Number: 2019045287

May 29, 2019

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Bromine	8	UN1744	I, Hazard Zone A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a 10 gallon UN 1N1 monel drum meeting the package description in TEN-E test report 04-1277, dated December 16, 2004 on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD), with minimum thicknesses as indicated below:

Drum body - 14 gauge (1.9 mm)
Drum heads - 14 gauge (1.9 mm)
Foot rings - 12 gauge (2.67 mm)

The top of the drum contains two NPS threaded openings, one 2 inch, and one $\frac{3}{4}$ ", which are closed with monel threaded plugs and Teflon gaskets. The monel plugs must meet the specifications in TEN-E test report 04-1277 and must be torqued in accordance the specifications in the report. After torquing the plugs, the two plugs are safety wired to ensure they will not loosen during transportation and sealed with a tamper evident seal.

b. TESTING:

(1) Each drum must be capable of passing a hydrostatic pressure test in accordance with 49 CFR 178.605 at a test pressure of 1,650 kPa (239 psig).

(2) Each drum must be capable of passing a random vibration test in accordance with ASTM-D4728, assurance level 1, in both the upright and inverted orientation.

(3) Each drum must be capable of passing the "Puncture Test" indicated in TEN-E Report Number 04-1277 on file with OHMSAPD, at a drop height of 85 inches.

May 29, 2019

c. OPERATIONAL CONTROLS:

- (1) No new construction of these drums is authorized.
- (2) Lanxees Solutions US Inc., formerly Chemtura Corporation, must track each drum electronically by serial number.
- (3) Drums, full or empty, may only be shipped in a stretch-wrapped, palletized configuration, with no more than 5 full drums or 9 empty drums on each pallet.
- (4) No more than 25 filled drums may be shipped in one closed transport vehicle.
- (5) Drums may not be stacked and no other materials may be placed on the drums in transportation.
- (6) Drum openings and threaded plugs must be inspected prior to each use to ensure they meet the design and use criteria. Drums with worn threads, or plugs with worn threads must be removed from service. New Teflon gaskets must be installed each time the drums are filled.
- (7) Drums must be inspected externally and internally prior to refilling. The internal inspection must be performed with a borescope.
- (8) Prior to shipment, each drum must be held in the horizontal position for one minute and observed for leakage. Leaking drums must have the gaskets replaced and be resealed.
- (9) All pallets must be securely blocked and braced prior to transportation.
- (10) Transportation is authorized by motor vehicle only. The carrier must meet the Carrier Profile Checklist and Carrier Self Assessment criteria established by Great Lakes Chemical Corporation on file with OHMSAPD.

8. SPECIAL PROVISIONS:

- a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

- b. A person who receives a package under the terms of this special permit may return that package to the grantee without party status to this special permit when transported in accordance with the applicable requirements in paragraph 7.c. only when it has been emptied to the maximum extent possible.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special

May 29, 2019

permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DBurger/TD